

Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 9/18/2026 10:00 AM

#	Case Name	Tentative
1	Silvett vs. General Motors, LLC 30-2024- 01435633-CU- BC-CJC	Motion for Attorney Fees Continued to 10/16/2026 to be heard concurrently with OSC re Sanctions.
2	Rha vs. American Honda Motor Co. Inc. 30-2025- 01490625-CU- PL-CJC	Motion for Attorney Fees, Costs, and Expenses The Motion for Attorney Fees and Costs by Plaintiffs Joseph Rha and Hanna Rha is GRANTED in part. The Court previously continued this matter to allow the parties to submit supplemental briefs on the application of <i>Gorobets v. Jaguar Land Rover North America, LLC</i> (2026) 20 Cal.5th 501 (<i>Gorobets</i>).

		Defendant maintains the first 998 offer, which was identical to the second 998 offer Plaintiffs accepted, cut off Plaintiffs' entitlement to subsequent fees and costs under <i>Gorobets</i>. Defendant asserts prior to the first 998 offer, Plaintiffs only incurred \$280.00 in fees and costs. Plaintiffs do not address the amount incurred prior to the first 998 offer. In their supplemental brief filed on 8/28/2026, Plaintiffs apparently concede the initial 998 offer was valid. However, they argue the second 998 offer "extinguished" the initial offer and <i>Gorobets</i> does not change this "last-offer rule." Plaintiffs also contend the 998 offer expressly deems them the prevailing parties. Notably, Plaintiffs did not raise either argument in their initial briefing pre-<i>Gorobets</i>. Defendant asserts the "last offer rule" is irrelevant to this case because the last 998 offer superseded the first 998 offer but did not render it ineffective in cutting off Plaintiffs' entitlement to fees and costs under section 998. The initial 998 offer had already been deemed revoked by operation of law when the second offer was served more than 30 days later. Therefore, the last offer rule is inapplicable because the Court is not presented with a situation where there are two section 998 offers pending at once. Plaintiffs are entitled to the fees and costs prior to the first 998 offer. Therefore, the motion is granted in the amount of \$280.00. Plaintiffs are ORDERED to submit a proposed judgment within 5 days. Clerk to give notice.
3	DI Overnite Investments, LLC vs. Nabal 30-2024- 01393386-CU- BT-CJC	Motion to Post Bond and Further Stay First Amended Cross-Complaint Cross-Defendant DI Overnite Investments LLC's (DIO) unopposed Motion to Post Bond and Stay the Cross-Complaint Until Bond is Furnished is GRANTED. "A shareholder's derivative suit seeks to recover for the benefit of the corporation and its whole body of shareholders when injury is caused to the corporation that may not otherwise be redressed because of failure of the corporation to act." (<i>Jones v. H. F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 106.)

		Nabal's First Amended Cross-Complaint's first cause of action for fraud contains a derivative claim. Nabal alleges he is the owner of a 27.73% share in DIO and has lost "value of his interest in DI Overnite" (FACC, ¶¶ 13, 37.) Thus, Nabal has alleged an injury to DIO as a whole rather than to Nabal personally. Corporations Code section 17709.02, subdivision (b) provides: "(b) In any action referred to in subdivision (a), at any time within 30 days after service of summons upon the limited liability company or upon any defendant who is a manager of the limited liability company or held that position at the time of the acts complained of, the limited liability company or the defendant may move the court for an order, upon notice and hearing, requiring the plaintiff to furnish security as hereinafter provided. The motion shall be based upon one or both of the following grounds: (1) That there is no reasonable possibility that the prosecution of the cause of action alleged in the complaint against the moving party will benefit the limited liability company or its members. (2) That the moving party, if other than the limited liability company did not participate in the transaction complained of in any capacity" Nabal has not complied with requirement to maintain a derivative claim in Corporations Code section 17709.02, subdivision (a)(2) which mandates the plaintiff allege their efforts to inform the LLC of the derivative claims asserted. Additionally, the factual basis for the derivative claims in the FACC are unclear, as Nabal alleges no nexus between his claims of fraud and the diminution in value of his interest in DIO. There is no reasonable possibility of Nabal prevailing on his derivative claims. The Court finds DIO's uncontroverted evidence of attorney fees exceeding the statutory maximum of \$50,000 to be credible. Cross-Complainant Philip Nabal is ORDERED to furnish a bond of \$50,000 within 10 days. Failure to post the bond as ordered will result in a court order dismissing the first cause of action for fraud. (Corp. Code, § 17709.02, subd. (c)(2).)
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		Nabal's prosecution of the first cause of action for fraud is STAYED pending posting of the bond and/or dismissal. Clerk to give notice.
4	Collision vs. KRC Santa Margarita, LLC 30-2025-01530542-CU-PO-CJC	Demurrer to First Amended Complaint Defendant Kisco Senior Living, LLC (Kisco)'s Demurrer to Plaintiff's First Amended Complaint is OVERRULED. The FAC is not uncertain. At this stage, the allegations are sufficient to put Kisco on notice of the claims against it. Any additional factual detail may be obtained through discovery. <u>First cause of action for Elder Abuse</u> Plaintiff alleges sufficient facts to support a cause of action for Elder Abuse. (FAC ¶¶ 14-16, 16-73; see <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32.) Plaintiff also alleges sufficient facts to allege a custodial relationship (FAC ¶¶ 1, 3-4, 6, 13) and corporate ratification (FAC ¶¶ 66, 71.) <u>Second cause of action for negligence</u> Plaintiff alleges sufficient facts to support her negligence cause of action as well as a continuing course of neglect. (FAC ¶¶ 41, 42, 62, 95-97; see <i>Aryeh v. Canon Business Solutions, Inc.</i> (2013) 55 Cal.4th 1185, 1197-1200.) Motion to Strike First Amended Complaint Defendants KRC Santa Margarita, LLC and Kisco Senior Living, LLC's Motion to Strike is DENIED. As Plaintiff's cause of action for elder abuse under the Elder Abuse Act was sufficiently alleged for purposes of demurrer, Plaintiff has also sufficiently alleged facts to support her request for punitive damages and attorney fees. Defendants are ORDERED to file an answer within 5 days. Clerk to give notice.
5	Albanese vs. Navient Corporation	Demurrer to First Amended Complaint Off calendar – withdrawn at demurring party's request.

	30-2025-01516849-CU-CR-CJC	
6	Doe vs. Orange County 30-2025-01530494-CU-PO-CJC	Demurrer to Complaint Defendant, County of Orange’s demurrer to complaint is SUSTAINED with 10 days leave to amend. According to defendant’s counsel, during the statutorily-required meet and confer process, plaintiff’s counsel agreed to file a first amended complaint. Although not raised directly by defendant, the court finds the complaint uncertain and lacking in necessary detail. Plaintiff is ORDERED to file a red-lined and clean version of the first amended complaint. Clerk to give notice.
7	Nieto vs. Aaron Thomas Company 30-2025-01466779-CU-WT-CJC	Demurrer to Complaint Off calendar – First Amended Complaint filed.
8	Garcia vs. Providence St. Jude Medical Center 30-2025-01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant Providence St. Jude Medical Center dba St. Jude Hospital’s demurrer to first amended complaint is SUSTAINED without leave to amend in part and SUSTAINED with 10 days leave to amend in part. <u>Third cause of action for negligent infliction of emotional distress – SUSTAINED without leave to amend</u> The third cause of action for negligent infliction of emotional distress is not an independent tort. Since it is based on the same allegations as the first and second causes of action for professional negligence, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int’l</i> (1985) 166 Cal.App.3d 1123, 1136.) <u>Fourth cause of action for fraudulent concealment – SUSTAINED with 10 days leave to amend</u> Plaintiffs’ fraud claim fails because Plaintiffs have not alleged specific facts indicating intentional concealment, knowledge of falsity, an intent to deceive by Defendant, reliance and causation. Plaintiffs provide no specific facts

		as to who concealed any facts or made any alleged representation, or what was specifically said. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 545.) Motion to Strike Portions of First Amended Complaint Defendant Providence St. Jude Medical Center dba St. Jude Hospital's Motion to Strike is GRANTED with 10 days leave to amend. Defendant moves to strike "For restitution according to proof" from page 8, prayer item no. 3 and "For . . . reasonable attorneys' fees according to proof" from page 8, prayer item no. 5 of the First Amended Complaint. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 545.) Restitution is an equitable remedy generally available in cases involving unjust enrichment, disgorgement, or the restoration of specific funds or property wrongfully obtained by a defendant. (See <i>Korea Supply Co. v. Lockheed Martin Corp.</i> (2003) 29 Cal.4th 1134, 1144-1149 [restitution is limited to the return of money or property wrongfully obtained from the plaintiff]; <i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 661 [restitution requires that the defendant possess money or property belonging to the plaintiff].) Restitution is not a recognized measure of damages in a medical negligence action such as this. Plaintiffs have not alleged facts demonstrating defendant wrongfully acquired or retained money or property belonging to plaintiffs, nor have they alleged any basis for equitable restitution. Attorney fees are recoverable only when authorized by contract, statute or law. (Code Civ. Proc., §§ 1033.5, subd. (a)(10), 1021.) The FAC does not state a contractual, statutory, or other legal basis for an award of attorney fees.
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9	Richardson Investments LLC vs. Abi-Abdallah 30-2025-01512582-CU-FR-CJC	Demurrer to Complaint and Motion to Strike Complaint Off calendar – defendants dismissed.
10	Dobson vs. Rao 30-2024-01436220-CU-FR-CJC	Motion for Summary Judgment and/or Adjudication Off calendar at request of moving party.
11	RDG Construction Services, Inc. vs. Gold's Drywall, Inc. 30-2023-01360563-CU-BC-CJC	Demurrer to First Amended Cross-Complaint Cross-Defendant/Plaintiff RDG Construction Services, Inc.'s Motion for Summary Adjudication as to the 4th Cause of Action of Cross-Complainant/Defendant Gold's Drywall, Inc.'s (Gold) Cross-Complaint is DENIED. RDG argues the 4th cause of action for recovery of the mechanic's lien release bond must be venued where the property subject to the mechanic's lien is located pursuant to Code of Civil Procedure, section 392. RDG presents no on-point decisional law requiring the result it seeks. This is not an action for mechanic's lien; it is an action for recovery of a release bond. "An owner of real property or an owner of any interest in real property subject to a recorded claim of lien, or a direct contractor or subcontractor affected by the claim of lien, that disputes the correctness or validity of the claim may obtain release of the real property from the claim of lien by recording a lien release bond. The principal on the bond may be the owner of the property, the direct contractor, or the subcontractor." (Civ. Code, § 8424, subd. (a).) A bond is subject to venue under Code of Civil Procedure, section 996.430, subdivisions (b), which provides, "If the bond was given in an action or proceeding, the action shall be commenced in the court in which the action or proceeding was pending. If the bond was given other than in an action or proceeding, the action shall be commenced in any court of competent jurisdiction, and the amount of damage claimed in the action, not the

		amount of the bond, determines the jurisdictional classification of the case.” Thus, venue in Orange County is proper under Code of Civil Procedure section 996.430, subdivision (b). RDG argues a release of mechanic’s lien bond is treated the same as a foreclosure on a mechanic’s lien and cites to <i>Hutnick v. U.S. Fidelity & Guaranty Co.</i> (1988) 47 Cal.3d 456 (<i>Hutnick</i>). The court disagrees <i>Hutnick</i> supports RDG’s position. <i>Hutnick</i> is distinguishable and does not address proper venue for a claim on a bond only. In <i>Hutnick</i>, plaintiffs sought to foreclose on their mechanic’s lien in December 1982. (<i>Hutnick, supra</i>, 47 Cal.3d at p. 460.) On July 26, 1985, a defendant recorded a lien release bond from United States Fidelity and Guaranty Company. (<i>Id.</i> at p. 461.) Plaintiffs amended their complaint to add United, however, failed to assert a cause of action against it and the trial court sustained United’s demurrer. (<i>Ibid.</i>) The trial court sustained a demurrer to the cause of action for recovery of the bond in third amended complaint on the grounds it was untimely because it was not filed within the 6 months of the bond. (<i>Id.</i> at 461-462.) The California Supreme Court reversed the ruling sustaining the demurrer on the grounds filing a bond after an action for foreclosure on the lien does not implicate the statute of limitations to assert a claim for release of the bond because the causes of action are the same in that instance. (<i>Id.</i> at 463-464.) <i>Hutnick</i> addressed whether a claim for release of a mechanic’s lien bond that is filed after a claim for foreclosure of the lien is the same cause of action. (<i>Hutnick, supra</i>, 47 Cal.3d at pp. 463-464.) The court reasoned, “[r]ecognizing that only a single cause of action is involved, courts of other jurisdictions have held that if a mechanic’s lien foreclosure action has been timely commenced and the complaint is then amended to bring in a surety and to obtain relief on a lien release bond, the amendment is not itself subject to any limitations period.” (<i>Id.</i> at p. 463.) “In seeking to enforce their mechanics’ lien first against the lien property and subsequently against the release bond plaintiffs have pursued a single cause of action.” (<i>Ibid.</i>) Here, however, Gold has not sought to foreclose on the mechanic’s lien. It has only sought to recover pursuant to
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		the bond. Thus, <i>Hutnick</i> is distinguishable, because here there is no “single cause of action.” Further, <i>Hutnick</i> does not address where an action to recover only the mechanic’s lien bond is properly venued. Thus, absent authority expanding Code of Civil Procedure, section 392, subdivision (a) to claims only to recover on the bond and not to foreclose the lien, RGB has failed to meet its burden to show it is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Clerk to give notice.
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